

26STCV05668 26STCV05668

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Case Number: 26STCV05668 Hearing Date: August 26, 2026 Dept: 406

ISABELA MEDINA-MATE, et

al.,

Plaintiffs,

v.

STUDIO71, LP,

Defendant.

Case No.: 26STCV05668

Hearing Date: August 26, 2026

[TENTATIVE]

order RE:

defendant's demurrer to complaint

BACKGROUND

On February 19, 2026, Plaintiffs

Isabela Medina-Mate (Medina) and Isa Joke Inc. (Isa Joke) filed this action against Defendant Studio71, LP (S71) for conversion and interference with contractual relations. The dispute stems from the following facts.

From 2021 to 2023, Medina co-hosted

a podcast titled Sounds Like a Cult (SLAC). (Compl. ¶¶ 10-11.) When Medina departed SLAC in 2023, she entered into a Separation Agreement, under which she retained 50% ownership of SLAC and its profits. (Id., ¶ 11.) Medina also jointly owns the SLAC RSS feed, a distribution and content management system. (Id., ¶ 12.) Medina's ownership of the RSS feed entitles her to access it to promote her other podcast, I'm Right, You're Wrong. (Ibid.) In November 2024, S71 became the podcast network for SLAC and the sole administrator of the RSS feed. (Compl. ¶ 13.) S71 has allegedly failed to pay Medina any portion of SLAC's profits and restricted Medina's access to the RSS feed. (Id., ¶¶ 17-18.) Isa Joke is Medina's loan-out corporation. (Id., ¶ 6.)

On July 22, 2026, S71 filed the instant demurrer to the complaint. Plaintiffs filed an opposition on August 13, 2026. S71 filed a reply on August 19, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) 'in ordinary and concise language,' and the test for adequacy is not absolute but 'whether the pleading as a whole apprises the adversary of the factual basis of the claim.'" (Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the

objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.)

The Court finds that Defendant has satisfied the meet and confer requirement. (See Frid Decl.)

DISCUSSION

I.

Conversion

a. SLAC Revenue

The elements of conversion are: (1) the plaintiff's ownership or right to possession of the personal property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. (*Welco Electronics, Inc. v. Mora* (2014) 223 Cal.App.4th 202, 208.)

"[M]oney cannot be the subject of an action for conversion unless a specific sum capable of identification is involved." (*Voris v. Lampert* (2019) 7 Cal.5th 1141, 1151.) The plaintiff must also have a "possessory interest" in the specific sum. (*Ibid.*) Therefore, "the simple failure to pay money owed does not constitute conversion." (*Ibid.*) A contractual dispute over payment cannot be transformed into conversion. (*Id.* at pp. 1151-52.) But "[c]ontractual provisions may, of course, determine whether the plaintiff has a possessory right to certain funds in the defendant's hands." (*Id.* at p. 1152.) "Consistent with this understanding, cases recognizing claims for the conversion of money 'typically involve those who have misappropriated, commingled, or misapplied specific funds held for the benefit of others.'" (*Ibid.*, quoting *PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 396.)

S71 argues that it is not a party to the Separation Agreement and has no contractual duty to pay Medina any money. S71 contends that Medina cannot transform her contractual dispute with a third party into a conversion claim against S71. However, the conversion claim against S71 is not based on a contractual right of payment. Rather, Medina alleges the ultimate fact that she owns 50% of SLAC's revenue from 100 episodes. (Compl. ¶ 11.) This must be assumed true regardless of whether S71 owes any contractual duties to Medina. The Separation Agreement may serve as

evidence of Medina's ownership interest without necessarily turning the claim into a contractual one. (See Voris, supra, 7 Cal.5th at p. 1152 ["Contractual provisions may, of course, determine whether the plaintiff has a possessory right to certain funds in the defendant's hands"].)

The complaint alleges S71 was aware of Medina's ownership interest in SLAC revenue, revenue was indeed generated from SLAC, and S71 intentionally withheld 50% of that revenue from Medina. (Compl. ¶¶ 14-17.) In other words, S71 "misappropriated, commingled, or misapplied specific funds held for the benefit of" Medina. (See Voris, supra, 7 Cal.5th at p. 1152.) This constitutes conversion of a specific, identifiable sum of money. Although the precise amount is not pled, the requirement is for the sum to be identifiable, not immediately calculated at the pleading stage. The revenue generated from SLAC (and 50% thereof) is a specific and identifiable amount.

S71 contends that Medina simply claims half of S71's revenue without establishing that any portion belongs to her. Not so. Medina specifically alleges ownership of 50% of SLAC revenue for 100 episodes and specifically alleges that S71 monetized those 100 SLAC episodes. (Compl. ¶ 15.) This reasonably supports an inference that S71 received revenue belonging to Medina. Whether Medina actually owns any portion of the revenue that S71 received from SLAC is a question of fact beyond the purview of a demurrer.

b. RSS Feed

"California law now holds that property subject to a conversion claim need not be tangible in form; intangible property interests, too, can be converted." (Voris, supra, 7 Cal.5th at p. 1151.) "[U]nauthorized use . . . can take many forms," and courts have recognized "that the unauthorized taking of an intangible property interest not merged with or reflected in tangible property can be an actionable conversion." (Welco, supra, 223 Cal.App.4th at pp. 210-11, citing Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119-25.)

S71

argues that a dispute over access to the RSS feed does not constitute conversion of personal property. However, "[c]onversion is any act of dominion wrongfully exerted over another's personal property in denial of or

inconsistent with his rights therein.” (Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc. (2018) 29 Cal.App.5th 230, 242.) Medina has alleged the ultimate fact that she jointly owns the RSS feed. (Compl. ¶ 12.) S71 cites no authority suggesting that the RSS feed cannot constitute an intangible property interest subject to conversion. S71 has allegedly blocked Medina’s access to the RSS feed, which constitutes an “act of dominion” over Medina’s property interest. (See Professional Tax Appeal, supra, 29 Cal.App.5th at p. 242.)

Therefore,
the conversion claim has been adequately pled.

II. Interference with Contractual Relations

The elements of intentional interference with contractual relations are: “(1) a valid contract between plaintiff and a third party; (2) defendant’s knowledge of this contract; (3) defendant’s intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (Pacific Gas & Electric Co. v. Bear Stearns & Co. (1990) 50 Cal.3d 1118, 1126.)

Here, the contractual interference claim is based on “the Separation Agreement . . . between Medina and a third party.” (Compl. ¶ 31.) The complaint alleges that S71 “induce[d] a breach or disruption of the contractual relationship between Medina and the third party” by “unlawfully withholding Medina’s money and prohibiting Medina from accessing or using the RSS feed.” (Id., ¶ 33.)

This sufficiently describes a “breach or disruption of the contractual relationship.” (See Pacific Gas & Electric Co., supra, 50 Cal.3d at p. 1126, emphasis added.) Under the Separation Agreement, Medina is owed 50% of revenue from 100 episodes of SLAC and retains access to the RSS feed. S71 allegedly prevented Medina from receiving her 50% share of SLAC revenue and prevented her access to the RSS feed. This constitutes a disruption of the contractual relationship. It may also be reasonably inferred that the contract was breached if Medina did not receive her 50% share or retain access to the RSS feed as required by the contract. The complaint alleges the ultimate fact that S71 intentionally caused this breach

or disruption. (Compl. ¶¶ 33-36.)

Whether S71 intended to disrupt the contractual relationship, and whether its conduct was directed at the contractual relationship, are questions of fact beyond the purview of a demurrer. For pleading purposes, the allegations support an inference that S71 intended to disrupt the contractual relationship between Medina and the third party.

Therefore, the complaint adequately pleads contractual interference.

CONCLUSION

Defendant's demurrer is OVERRULED.